AI use and personal data in Qatar: an open checklist

For: any company in Qatar whose staff use AI tools (chatbots, writing assistants, CV screening, transcription, image tools) with information about people.

Laws covered: Qatar's Personal Data Privacy Protection Law, Law No. 13 of 2016 (PDPPL), for companies onshore; the QFC Data Protection Regulations 2021 (QFC DPR), for firms in the Qatar Financial Centre.

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> This checklist is general information about the law. It does not assess your own processing.

1. Know which AI tools are used, and what goes into them

- [ ] List every AI tool your teams use, including free accounts opened by staff on their own.
- [ ] For each tool, write down what personal data goes in (names, CVs, patient notes, client emails, photos) and why.
- [ ] Keep this list current. It is the start of the internal system for managing personal data that the PDPPL requires.

PDPPL Art.11(5): the controller must develop internal systems for managing personal data effectively and for reporting any breach. Qatar's data protection authority, the NCSA, calls this a Personal Data Management System.

QFC DPR Art.30: a written record of all processing, produced to the Data Protection Office on request.

2. Have a lawful basis before personal data goes into an AI tool

- [ ] For each use, name the basis: consent, or a lawful purpose of the company (PDPPL); or one of the six bases (QFC).
- [ ] If you rely on consent, make sure it can be withdrawn as easily as it was given.

PDPPL Art.4: processing is allowed with the person's consent, or where necessary for a lawful purpose of the controller or of the party receiving the data.

QFC DPR Art.10-11: consent, contract, legal obligation, vital interests, public task, or legitimate interests; and consent must be free, specific, informed and unambiguous.

3. Tell people before their data is processed

- [ ] Your privacy notice says that AI tools are used, for what, and who else receives the data (the AI provider).
- [ ] Candidates, patients and clients see it before their data is collected.

PDPPL Art.9: before processing starts, the person must be told who the controller is, who else processes the data, the purposes and a description of the processing.

QFC DPR Art.14-15: information when data are collected, and within 30 days at the latest when they come from someone else.

4. Treat health data, children's data and other special data separately

- [ ] Never put patient records, test results or children's data into a general AI tool without the specific legal steps below.

- [ ] Clinics and labs: check whether the processing needs the authority's permission first.

PDPPL Art.16: personal data of a special nature (ethnic origin, children, health, physical or psychological condition, religious beliefs, marital relations, criminal offences) may be processed only after the permission of the Competent Department. NCSA's guideline on special-nature processing requires this permission whatever the purpose.

PDPPL Art.17: extra duties for websites addressing children.

QFC DPR Art.12: sensitive data only under a listed condition, such as explicit written consent or medical purposes under professional secrecy.

5. Treat the AI provider as a processor, with a written contract

- [ ] Check that each AI provider is bound by a contract: what it may do with your data, security, sub-processors, deletion.
- [ ] Prefer business plans whose terms say your inputs are not used to train the provider's models, and check it in the contract itself.

PDPPL Art.11(8) and Art.12: the controller must verify that each processor follows its instructions and protects the data. NCSA's Controller and Processor guideline says this requires a written contract.

QFC DPR Art.28: only processors with sufficient guarantees, a written contract with each, and no sub-processor without written authorisation.

6. Know where the data goes

- [ ] Write down in which country each AI tool stores and processes the data.
- [ ] QFC firms: check that each transfer outside the QFC has a legal route.

PDPPL Art.15: the controller may not limit cross-border data flows unless the processing breaches the law or may cause serious damage to the data or to the person's privacy.

QFC DPR Art.23-24: transfers outside the QFC only to an adequate jurisdiction, with appropriate safeguards, under a listed derogation, or with a Data Protection Office permit.

7. Assess the risk before a new AI use starts

- [ ] Before rolling out a new AI tool or a new use (CV screening, call transcription, a patient chatbot), carry out and file a written privacy impact assessment.

PDPPL Art.11(1): the controller must review its privacy measures before new processing. NCSA's guideline implements this as a Data Privacy Impact Assessment.

QFC DPR Art.27: an impact assessment before high-risk processing, in particular automated decisions with significant effects and large-scale sensitive data.

8. Keep people in the loop on automated decisions

- [ ] If an AI tool ranks or rejects candidates, scores clients or decides on a service, a person reviews the decision and the person concerned can contest it.

QFC DPR Art.22: a right not to be subject to a decision based solely on automated processing with legal or similarly significant effects, with exceptions, and in those cases a right to human intervention.

9. Secure the data, and be ready for a breach

- [ ] Access to AI accounts is personal, protected and removed when someone leaves.
- [ ] Staff know whom to tell, the same day, if personal data went into the wrong tool or was exposed.
- [ ] You can notify within 72 hours.

PDPPL Art.13-14: precautions proportionate to the data; the person and the Competent Department are told of any breach that may cause serious damage. NCSA's breach guideline sets 72 hours from becoming aware. A processor must tell the controller at once (Art.13).

QFC DPR Art.29 and Art.31: appropriate security; breach notified to the Data Protection Office within 72 hours where feasible.

10. Put in only what is needed, and delete it

- [ ] Remove names and identifiers before pasting text into an AI tool whenever the task allows it.
- [ ] Set retention: chat histories and uploaded files are deleted when no longer needed.

PDPPL Art.10: data relevant, adequate, accurate, and kept no longer than necessary.

QFC DPR Art.8-9 and Art.26: data minimisation, storage limitation, privacy by design and by default.

11. Answer people's requests on time

- [ ] You can find everything an AI tool holds about a person, and answer an access, correction or erasure request.

PDPPL Art.5-6: rights to withdraw consent, object, erase, correct and access. NCSA's guideline says controllers respond within 30 calendar days.

QFC DPR Art.13 and Art.16-21: answer within 30 days, extendable by 60 days in complex cases.

12. AI-written marketing still needs consent

- [ ] Marketing emails and messages drafted with AI are sent only to people who agreed, name the sender and include a working unsubscribe address.

PDPPL Art.22: no electronic direct marketing without prior consent; every message identifies its sender and offers a way to stop.

13. Write it down and train your people

- [ ] A one-page AI policy: which tools are allowed, what may never go into them, who is accountable.
- [ ] Every person who uses AI tools has read it, and you can show it.

PDPPL Art.11: the controller identifies and trains its processors, audits its compliance and sets up complaint and request systems.

QFC DPR Art.9: the controller must be able to demonstrate compliance.

NCSA has also published guidelines on the secure use and adoption of AI (SOURCES.md).

Penalties

The PDPPL sets fines in Articles 23 to 25, including fines for the company itself. The QFC DPR sets a maximum penalty in Article 36. Read them in the official texts linked in SOURCES.md.

About

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